

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

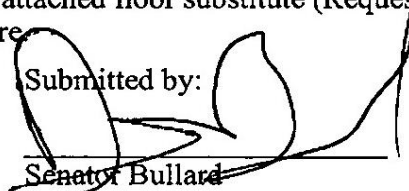
No. 1

☐ COMMITTEE AMENDMENT

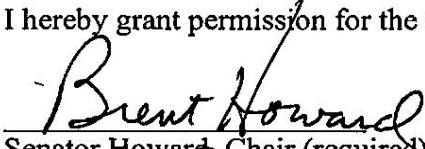
(Date)

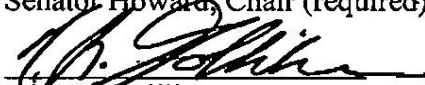
I move to amend Senate Bill No. 1540 by substituting the attached floor substitute (Request # 3792) for the title, enacting clause, and entire body of the measure.

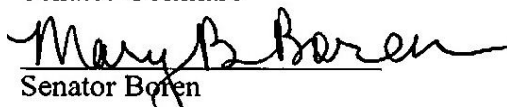
Submitted by:


Senator Bullard

I hereby grant permission for the floor substitute to be adopted.


Senator Howard, Chair (required)

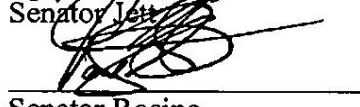

Senator Gollihare

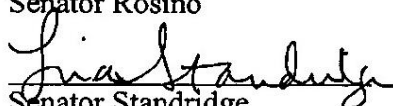

Senator Boren

Senator Brooks


Senator Jech


Senator Jett


Senator Rosino


Senator Standridge

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor Leader

Note: Judiciary Committee majority requires five (5) members' signatures.

Bullard-TEK-FS-SB1540
3/11/2026 11:31 AM

(Floor Amendments Only)

Date and Time Filed: 3-12-26

9:20am *fd*

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 1540

By: Bullard, Deever, Grellner,
Guthrie, McIntosh, Jett,
and Logan of the Senate

and

West (Kevin) of the House

FLOOR SUBSTITUTE

An Act relating to crimes and punishments; amending Section 11, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2025, Section 20K), which relates to Class B6 felony offenses; adding certain offense; updating statutory references; amending 21 O.S. 2021, Section 51.1a, which relates to second offense of first degree rape, sodomy, lewd molestation, or sexual abuse of a child; modifying certain sentencing provision; amending 21 O.S. 2021, Section 843.5, as last amended by Section 8, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5), which relates to child abuse; creating felony offense; providing penalties; requiring certain advisement; defining terms; updating statutory language; amending 22 O.S. 2021, Section 991a, as last amended by Section 1, Chapter 306, O.S.L. 2025 (22 O.S. Supp. 2025, Section 991a), which relates to sentencing powers of the court; modifying certain confinement criteria; requiring electronic submission of certain report; updating statutory references; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 11, Chapter 366, O.S.L.

2024 (21 O.S. Supp. 2025, Section 20K), is amended to read as follows:

Section 20K. A. ~~Upon the effective date of this act~~ On or after January 1, 2026, Class B6 shall include the following criminal offenses:

1. Striking, tormenting, mistreating, or administering a nonpoisonous desensitizing substance to a police dog or police horse, as provided for in subsection A of Section 649.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

2. Interfering with the lawful performance of a police dog or police horse, as provided for in subsection B of Section 649.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3. Harming, torturing, injuring, disabling, or otherwise mistreating or killing a service animal during the commission of a misdemeanor or felony offense, as provided for in subsection D of Section 649.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4. Assault, battery, or assault and battery upon a Department of Corrections employee by a person in the custody of the Department of Corrections, as provided for in subsection A of Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5. Assault, battery, or assault and battery upon an employee of a private prison contractor by a person incarcerated in an institution operated by a private prison contractor, as provided for

1 in subsection B of Section 650.2 of ~~Title 21 of the Oklahoma~~
2 ~~Statutes~~ this title;

3 6. Aggravated assault and battery upon a Department of Human
4 Services employee or contractor, as provided for in subsection C of
5 Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 7. Assault, battery, or assault and battery upon an employee of
7 the Office of Juvenile Affairs by a person in the custody of the
8 Office of Juvenile Affairs, as provided for in subsection D of
9 Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 8. Assault, battery, or assault and battery upon a medical care
11 provider, as provided for in Section 650.4 of ~~Title 21 of the~~
12 ~~Oklahoma Statutes~~ this title;

13 9. Assault, battery, or assault and battery upon an officer of
14 the court, witness, or juror, as provided for in subsection B of
15 Section 650.6 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 10. Aggravated assault and battery upon a school employee, as
17 provided for in subsection C of Section 650.7 of ~~Title 21 of the~~
18 ~~Oklahoma Statutes~~ this title;

19 11. Assault, battery, or assault and battery upon an employee
20 of a facility maintained by the Office of Juvenile Affairs, a
21 facility maintained by a private contractor, juvenile detention
22 center, or juvenile bureau, as provided for in Section 650.8 of
23 ~~Title 21 of the Oklahoma Statutes~~ this title;

1 12. Throwing, transferring, or placing any feces, urine, semen,
2 saliva, or blood upon an employee of the state, a county, or a city,
3 as provided for in Section 650.9 of ~~Title 21 of the Oklahoma~~
4 ~~Statutes~~ this title;

5 13. Medical battery, as provided for in Section 650.11 of ~~Title~~
6 ~~21 of the Oklahoma Statutes~~ this title; and

7 14. Grooming, as provided for in Section 843.5 of this title;
8 and

9 15. Child endangerment, as provided for in Section 852.1 of
10 ~~Title 21 of the Oklahoma Statutes~~ this title.

11 B. Any person convicted of a Class B6 criminal offense set
12 forth in this section shall be punished in accordance with the
13 corresponding penalties provided for in the Oklahoma Statutes.

14 SECTION 2. AMENDATORY 21 O.S. 2021, Section 51.1a, is
15 amended to read as follows:

16 Section 51.1a. Any person convicted of rape in the first
17 degree, forcible sodomy, lewd molestation, grooming, or sexual abuse
18 of a child after having been convicted of either rape in the first
19 degree, forcible sodomy, lewd molestation, grooming, or sexual abuse
20 of a child shall be sentenced to life without parole.

21 SECTION 3. AMENDATORY 21 O.S. 2021, Section 843.5, as
22 last amended by Section 8, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
23 2025, Section 843.5), is amended to read as follows:

1 Section 843.5. A. Any person who shall willfully or
2 maliciously engage in child abuse, as defined in this section,
3 shall, upon conviction, be guilty of a Class A3 felony offense
4 punishable by imprisonment in the custody of the Department of
5 Corrections not exceeding life imprisonment, or by imprisonment in a
6 county jail not exceeding one (1) year, or by a fine ~~of~~ not less
7 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
8 Dollars (\$5,000.00), or both such fine and imprisonment.

9 B. Any person responsible for the health, safety, or welfare of
10 a child who shall willfully or maliciously engage in enabling child
11 abuse, as defined in this section, shall, upon conviction, be guilty
12 of a Class A3 felony offense and shall be punished by imprisonment
13 in the custody of the Department of Corrections not exceeding life
14 imprisonment, or by imprisonment in a county jail not exceeding one
15 (1) year, or by a fine ~~of~~ not less than Five Hundred Dollars
16 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both
17 such fine and imprisonment.

18 C. Any person responsible for the health, safety, or welfare of
19 a child who shall willfully or maliciously engage in child neglect,
20 as defined in this section, shall, upon conviction, be guilty of a
21 Class B1 felony offense and shall be punished by imprisonment in the
22 custody of the Department of Corrections not exceeding life
23 imprisonment, or by imprisonment in a county jail not exceeding one
24 (1) year, or by a fine ~~of~~ not less than Five Hundred Dollars

1 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both
2 such fine and imprisonment.

3 D. Any parent or other person who shall willfully or
4 maliciously engage in enabling child neglect shall, upon conviction,
5 be guilty of a Class B1 felony offense and shall be punished by
6 imprisonment in the custody of the Department of Corrections not
7 exceeding life imprisonment, or by imprisonment in a county jail not
8 exceeding one (1) year, or by a fine ~~of~~ not less than Five Hundred
9 Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00),
10 or both such fine and imprisonment.

11 E. Any person responsible for the health, safety, or welfare of
12 a child who shall willfully or maliciously engage in child sexual
13 abuse, as defined in this section, shall, upon conviction, be guilty
14 of a Class A3 felony offense and shall be punished by imprisonment
15 in the custody of the Department of Corrections not exceeding life
16 imprisonment, or by imprisonment in a county jail not exceeding one
17 (1) year, or by a fine ~~of~~ not less than Five Hundred Dollars
18 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both
19 such fine and imprisonment, except as provided in Section 51.1a of
20 this title or as otherwise provided in subsection F of this section
21 for a child victim under twelve (12) years of age. Except for
22 persons sentenced to life or life without parole, any person
23 sentenced to imprisonment for two (2) years or more for a violation
24 of this subsection shall be required to serve a term of post-

1 imprisonment supervision pursuant to subparagraph f of paragraph 1
2 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes
3 under conditions determined by the Department of Corrections. The
4 jury shall be advised that the mandatory post-imprisonment
5 supervision shall be in addition to the actual imprisonment.

6 F. Any person responsible for the health, safety, or welfare of
7 a child who shall willfully or maliciously engage in child sexual
8 abuse, as defined in this section, to a child under twelve (12)
9 years of age shall, upon conviction, be guilty of a Class A1 felony
10 offense and shall be punished by imprisonment in the custody of the
11 Department of Corrections for not less than twenty-five (25) years
12 nor more than life imprisonment, and by a fine ~~of~~ not less than Five
13 Hundred Dollars (\$500.00) nor more than Five Thousand Dollars
14 (\$5,000.00).

15 G. Any parent or other person who shall willfully or
16 maliciously engage in enabling child sexual abuse shall, upon
17 conviction, be guilty of a Class A3 felony offense and shall be
18 punished by imprisonment in the custody of the Department of
19 Corrections not exceeding life imprisonment, or by imprisonment in a
20 county jail not exceeding one (1) year, or by a fine ~~of~~ not less
21 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
22 Dollars (\$5,000.00), or both such fine and imprisonment.

23 H. Any person who shall willfully or maliciously engage in
24 child sexual exploitation, as defined in this section, shall, upon

conviction, be guilty of a Class A3 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine ~~of~~ not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment, except as provided in subsection I of this section for a child victim under twelve (12) years of age. Except for persons sentenced to life or life without parole, any person sentenced to imprisonment for two (2) years or more for a violation of this subsection shall be required to serve a term of post-imprisonment supervision pursuant to subparagraph f of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes under conditions determined by the Department of Corrections. The jury shall be advised that the mandatory post-imprisonment supervision shall be in addition to the actual imprisonment.

I. Any person who shall willfully or maliciously engage in child sexual exploitation, as defined in this section, of a child under twelve (12) years of age shall, upon conviction, be guilty of a Class A1 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections for not less than twenty-five (25) years nor more than life imprisonment, and by a fine ~~of~~ not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00).

1 J. Any person responsible for the health, safety, or welfare of
2 a child who shall willfully or maliciously engage in enabling child
3 sexual exploitation, as defined in this section, shall, upon
4 conviction, be guilty of a Class A3 felony offense and shall be
5 punished by imprisonment in the custody of the Department of
6 Corrections not exceeding life imprisonment, or by imprisonment in a
7 county jail not exceeding one (1) year, or by a fine ~~of~~ not less
8 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
9 Dollars (\$5,000.00), or both such fine and imprisonment.

10 K. Notwithstanding any other provision of law, any person
11 convicted of forcible anal or oral sodomy, rape, rape by
12 instrumentation, or lewd molestation of a child under fourteen (14)
13 years of age subsequent to a previous conviction for any offense of
14 forcible anal or oral sodomy, rape, rape by instrumentation, or lewd
15 molestation of a child under fourteen (14) years of age shall be
16 guilty of a Class A1 felony offense and shall be punished by death
17 or by imprisonment for life without parole.

18 L. Provided, however, that nothing contained in this section
19 shall prohibit any parent or guardian from using reasonable and
20 ordinary force pursuant to Section 844 of this title.

21 M. Consent shall not be a defense for any violation provided
22 for in this section.

23 N. Any person who shall willfully or maliciously engage in
24 grooming, as defined in this section, shall, upon conviction, be

1 guilty of a Class B6 felony offense punishable by imprisonment in
2 the custody of the Department of Corrections for not more than ten
3 (10) years, by a fine not less than Ten Thousand Dollars
4 (\$10,000.00), or by both such imprisonment and fine. Except for
5 persons sentenced to life or life without parole, any person
6 sentenced to imprisonment for two (2) years or more for a violation
7 of this subsection shall be required to serve a term of post-
8 imprisonment supervision pursuant to subparagraph f of paragraph 1
9 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes
10 under conditions determined by the Department of Corrections. The
11 jury shall be advised that the mandatory post-imprisonment
12 supervision shall be in addition to the actual imprisonment.

13 O. Notwithstanding the age requirements of other statutes
14 referenced within this section, this section shall apply to any
15 child under eighteen (18) years of age.

16 ~~O.~~ P. As used in this section:

17 1. "Child abuse" means:

18 a. the willful or malicious harm or threatened harm or
19 failure to protect from harm or threatened harm to the
20 health, safety, or welfare of a child under eighteen
21 (18) years of age by a person responsible for a
22 child's health, safety, or welfare, or
23
24

b. the act of willfully or maliciously injuring,
torturing or maiming a child under eighteen (18) years
of age by any person;

2. "Child neglect" means the willful or malicious neglect, as
defined by Section 1-1-105 of Title 10A of the Oklahoma Statutes, of
a child under eighteen (18) years of age by a person responsible for
a child's health, safety, or welfare;

3. "Child sexual abuse" means the willful or malicious sexual
abuse of a child under eighteen (18) years of age by a person
responsible for a child's health, safety, or welfare and includes,
but is not limited to:

- a. sexual intercourse,
- b. penetration of the vagina or anus, however slight, by
an inanimate object or any part of the human body not
amounting to sexual intercourse,
- c. sodomy,
- d. incest, or
- e. a lewd act or proposal, as defined in this section;

4. "Child sexual exploitation" means the willful or malicious
sexual exploitation of a child under eighteen (18) years of age by
another and includes, but is not limited to:

- a. human trafficking, as provided for in Section 748 of
this title, if the offense involved child trafficking
for commercial sex,

- b. trafficking in children, as provided for in Section 866 of this title, if the offense was committed for the sexual gratification of any person,
- c. procuring or causing the participation of a minor in child ~~pornography~~ sexual abuse material, as provided for in Section 1021.2 of this title,
- d. purchase, procurement, or possession of child ~~pornography~~ sexual abuse material, as provided for in Section 1024.2 of this title,
- e. engaging in or soliciting prostitution, as provided for in Section 1029 of this title, if the offense involved child sex trafficking,
- f. publication, distribution, or participation in the preparation of obscene material, as provided for in Section 1040.8 of this title, if the offense involved child ~~pornography~~ sexual abuse material,
- g. aggravated possession of child ~~pornography~~ sexual abuse material, as provided for in Section 1040.12a of this title,
- h. sale or distribution of obscene material, as provided for in Section 1040.13 of this title,
- i. soliciting sexual conduct or communication with a minor by use of technology, as provided for in Section 1040.13a of this title,

j. offering or transporting a child for purposes of child sex trafficking, as provided for in Section 1087 of this title, and

k. child sex trafficking, as provided for in Section 1088 of this title;

5. "Enabling child abuse" means the causing, procuring, or permitting of child abuse by a person responsible for a child's health, safety, or welfare;

6. "Enabling child neglect" means the causing, procuring, or permitting of child neglect by a person responsible for a child's health, safety, or welfare;

7. "Enabling child sexual abuse" means the causing, procuring, or permitting of child sexual abuse by a person responsible for a child's health, safety, or welfare;

8. "Enabling child sexual exploitation" means the causing, procuring, or permitting of child sexual exploitation by a person responsible for a child's health, safety, or welfare;

9. "Grooming" means befriending and establishing an emotional connection with, or providing lewd or sexually explicit material to, a minor or a person responsible for the health, safety, or welfare of a minor in order to lower the minor's inhibitions with the intent to engage or direct the minor in:

a. sexual intercourse,

b. a lewd act or proposal,

1 c. penetration of the vagina or anus, however slight, by
2 an inanimate object or any part of the human body not
3 amounting to sexual intercourse,

4 d. sodomy, or

5 e. incest;

6 10. "Incest" means marrying, committing adultery, or
7 fornicating with a child by a person responsible for the health,
8 safety, or welfare of a child;

9 ~~10.~~ 11. "Lewd act or proposal" means:

- 10 a. making any oral, written, or electronic or computer-
11 generated lewd or indecent proposal to a child for the
12 child to have unlawful sexual relations or sexual
13 intercourse with any person,
- 14 b. looking upon, touching, mauling, or feeling the body
15 or private parts of a child in a lewd or lascivious
16 manner or for the purpose of sexual gratification,
- 17 c. asking, inviting, enticing, or persuading any child to
18 go alone with any person to a secluded, remote, or
19 secret place for a lewd or lascivious purpose,
- 20 d. urinating or defecating upon a child or causing,
21 forcing, or requiring a child to defecate or urinate
22 upon the body or private parts of another person for
23 the purpose of sexual gratification,
- 24 e. ejaculating upon or in the presence of a child,

1 f. causing, exposing, forcing, or requiring a child to
2 look upon the body or private parts of another person
3 for the purpose of sexual gratification,

4 g. causing, forcing, or requiring any child to view any
5 obscene materials, child ~~pornography~~ sexual abuse
6 material or materials deemed harmful to minors as such
7 terms are defined in Sections 1024.1 and 1040.75 of
8 this title,

9 h. causing, exposing, forcing, or requiring a child to
10 look upon sexual acts performed in the presence of the
11 child for the purpose of sexual gratification, or

12 i. causing, forcing, or requiring a child to touch or
13 feel the body or private parts of the child or another
14 person for the purpose of sexual gratification;

15 ~~11.~~ 12. "Permit" means to authorize or allow for the care of a
16 child by an individual when the person authorizing or allowing such
17 care knows or reasonably should know that the child will be placed
18 at risk of the conduct or harm proscribed by this section;

19 ~~12.~~ 13. "Person responsible for a child's health, safety, or
20 welfare" for purposes of this section shall include, but not be
21 limited to:

22 a. the parent of the child,

23 b. the legal guardian of the child,

24 c. the custodian of the child,

- d. the foster parent of the child,
- e. a person eighteen (18) years of age or older with whom the parent of the child cohabitates, who is at least three (3) years older than the child,
- f. any other person eighteen (18) years of age or older residing in the home of the child, who is at least three (3) years older than the child,
- g. an owner, operator, agent, employee, or volunteer of a public or private residential home, institution, facility, or day treatment program, as defined in Section 175.20 of Title 10 of the Oklahoma Statutes, that the child attended,
- h. an owner, operator, agent, employee, or volunteer of a child care facility, as defined in Section 402 of Title 10 of the Oklahoma Statutes, that the child attended,
- i. an intimate partner of the parent of the child, as defined in Section 60.1 of Title 22 of the Oklahoma Statutes, or
- j. a person who has voluntarily accepted responsibility for the care or supervision of a child;

~~13.~~ 14. "Sexual intercourse" means the actual penetration, however slight, of the vagina or anus by the penis; and

1 ~~14.~~ 15. "Sexually explicit material" means any communication,
2 language, or material including a written description, illustration,
3 photographic image, video image, or audio file that describes,
4 depicts, or portrays sexual conduct, actual or simulated sexual
5 intercourse, deviant sexual intercourse, rape, bestiality,
6 masturbation, sadomasochistic abuse, incest, molestation,
7 necrophilia, or lewd exhibition of the genitals, anus, or any
8 portion of the female breast below the top of the areola; and

9 16. "Sodomy" means:

- 10 a. penetration, however slight, of the mouth of the child
11 by a penis,
- 12 b. penetration, however slight, of the vagina of a person
13 responsible for a child's health, safety, or welfare,
14 by the mouth of a child,
- 15 c. penetration, however slight, of the mouth of the
16 person responsible for a child's health, safety, or
17 welfare by the penis of the child, or
- 18 d. penetration, however slight, of the vagina of the
19 child by the mouth of the person responsible for a
20 child's health, safety, or welfare.

21 SECTION 4. AMENDATORY 22 O.S. 2021, Section 991a, as
22 last amended by Section 1, Chapter 306, O.S.L. 2025 (22 O.S. Supp.
23 2025, Section 991a), is amended to read as follows:
24

1 Section 991a. A. Except as otherwise provided in the Elderly
2 and Incapacitated Victim's Protection Program, when a defendant is
3 convicted of a crime and no death sentence is imposed, the court
4 shall either:

5 1. Suspend the execution of sentence in whole or in part, with
6 or without probation. The court, in addition, may order the
7 convicted defendant at the time of sentencing or at any time during
8 the suspended sentence to do one or more of the following:

9 a. to provide restitution to the victim as provided by
10 Section 991f et seq. of this title or according to a
11 schedule of payments established by the sentencing
12 court, together with interest upon any pecuniary sum
13 at the rate of twelve percent (12%) per annum, if the
14 defendant agrees to pay such restitution or, in the
15 opinion of the court, if the defendant is able to pay
16 such restitution without imposing manifest hardship on
17 the defendant or the immediate family and if the
18 extent of the damage to the victim is determinable
19 with reasonable certainty,

20 b. to reimburse any state agency for amounts paid by the
21 state agency for hospital and medical expenses
22 incurred by the victim or victims, as a result of the
23 criminal act for which such person was convicted,
24 which reimbursement shall be made directly to the

- 1 state agency, with interest accruing thereon at the
2 rate of twelve percent (12%) per annum,
- 3 c. to engage in a term of community service without
4 compensation, according to a schedule consistent with
5 the employment and family responsibilities of the
6 person convicted,
- 7 d. to pay a reasonable sum into any trust fund
8 established pursuant to the provisions of Sections 176
9 through 180.4 of Title 60 of the Oklahoma Statutes and
10 which provides restitution payments by convicted
11 defendants to victims of crimes committed within this
12 state wherein such victim has incurred a financial
13 loss,
- 14 e. to confinement in the county jail for a period not to
15 exceed six (6) months,
- 16 f. to confinement as provided by law together with a term
17 of post-imprisonment community supervision for not
18 less than three (3) years of the total term allowed by
19 law for imprisonment, with or without restitution;
20 provided, however, the authority of this provision is
21 limited to Section 843.5 of Title 21 of the Oklahoma
22 Statutes when the offense involved sexual abuse ~~or~~,
23 sexual exploitation, or grooming; Sections 681, 741
24 and 843.1 of Title 21 of the Oklahoma Statutes when

1 the offense involved sexual abuse or sexual
2 exploitation; and Sections 865 et seq., 885, 886, 888,
3 891, 1021, 1021.2, 1021.3, 1040.13a, 1087, 1088,
4 1111.1, 1115 and 1123 of Title 21 of the Oklahoma
5 Statutes,

6 g. to repay the reward or part of the reward paid by a
7 local certified crime stoppers program and the
8 Oklahoma Reward System. In determining whether the
9 defendant shall repay the reward or part of the
10 reward, the court shall consider the ability of the
11 defendant to make the payment, the financial hardship
12 on the defendant to make the required payment and the
13 importance of the information to the prosecution of
14 the defendant as provided by the arresting officer or
15 the district attorney with due regard for the
16 confidentiality of the records of the local certified
17 crime stoppers program and the Oklahoma Reward System.
18 The court shall assess this repayment against the
19 defendant as a cost of prosecution. The term
20 "certified" means crime stoppers organizations that
21 annually meet the certification standards for crime
22 stoppers programs established by the Oklahoma Crime
23 Stoppers Association to the extent those standards do
24 not conflict with state statutes. The term "court"

1 refers to all municipal and district courts within
2 this state. The "Oklahoma Reward System" means the
3 reward program established by Section 150.18 of Title
4 74 of the Oklahoma Statutes,

5 h. to reimburse the Oklahoma State Bureau of
6 Investigation for costs incurred by that agency during
7 its investigation of the crime for which the defendant
8 pleaded guilty, nolo contendere or was convicted
9 including compensation for laboratory, technical or
10 investigation services performed by the Bureau if, in
11 the opinion of the court, the defendant is able to pay
12 without imposing manifest hardship on the defendant,
13 and if the costs incurred by the Bureau during the
14 investigation of the defendant's case may be
15 determined with reasonable certainty,

16 i. to reimburse the Oklahoma State Bureau of
17 Investigation and any authorized law enforcement
18 agency for all costs incurred by that agency for
19 cleaning up an illegal drug laboratory site for which
20 the defendant pleaded guilty, nolo contendere or was
21 convicted. The court clerk shall collect the amount
22 and may retain five percent (5%) of such monies to be
23 deposited in the Court Clerk's Revolving Fund to cover
24 administrative costs and shall remit the remainder to

1 the Oklahoma State Bureau of Investigation to be
2 deposited in the OSBI Revolving Fund established by
3 Section 150.19a of Title 74 of the Oklahoma Statutes
4 or to the general fund wherein the other law
5 enforcement agency is located,

6 j. to pay a reasonable sum to the Crime Victims
7 Compensation Board, created by Section 142.2 et seq.
8 of Title 21 of the Oklahoma Statutes, for the benefit
9 of crime victims,

10 k. to reimburse the court fund for amounts paid to court-
11 appointed attorneys for representing the defendant in
12 the case in which the person is being sentenced,

13 l. to participate in an assessment and evaluation by an
14 assessment agency or assessment personnel certified by
15 the Department of Mental Health and Substance Abuse
16 Services pursuant to Section 3-460 of Title 43A of the
17 Oklahoma Statutes and, as determined by the
18 assessment, participate in an alcohol and drug
19 substance abuse course or treatment program or both,
20 pursuant to Sections 3-452 and 3-453 of Title 43A of
21 the Oklahoma Statutes, or as ordered by the court,

22 m. to be placed in a victims impact panel program, as
23 defined in subsection H of this section, or
24 victim/offender reconciliation program and payment of

a fee to the program of Seventy-five Dollars (\$75.00) as set by the governing authority of the program to offset the cost of participation by the defendant. Provided, each victim/offender reconciliation program shall be required to obtain a written consent form voluntarily signed by the victim and defendant that specifies the methods to be used to resolve the issues, the obligations and rights of each person and the confidentiality of the proceedings. Volunteer mediators and employees of a victim/offender reconciliation program shall be immune from liability and have rights of confidentiality as provided in Section 1805 of Title 12 of the Oklahoma Statutes,

n. to install, at the expense of the defendant, an ignition interlock device approved by the Board of Tests for Alcohol and Drug Influence. The device shall be installed upon every motor vehicle operated by the defendant, and the court shall require that a notation of this restriction be affixed to the defendant's driver license. The restriction shall remain on the driver license not exceeding two (2) years to be determined by the court. The restriction may be modified or removed only by order of the court and notice of any modification order shall be given to

1 Service Oklahoma. Upon the expiration of the period
2 for the restriction, Service Oklahoma shall remove the
3 restriction without further court order. Failure to
4 comply with the order to install an ignition interlock
5 device or operating any vehicle without a device
6 during the period of restriction shall be a violation
7 of the sentence and may be punished as deemed proper
8 by the sentencing court. As used in this ~~paragraph~~
9 subparagraph, "ignition interlock device" means a
10 device that, without tampering or intervention by
11 another person, would prevent the defendant from
12 operating a motor vehicle if the defendant has a blood
13 or breath alcohol concentration of two-hundredths
14 (0.02) or greater,

- 15 o. to be confined by electronic monitoring administered
16 and supervised by the Department of Corrections or a
17 community sentence provider, and payment of a
18 monitoring fee to the supervising authority, not to
19 exceed Three Hundred Dollars (\$300.00) per month. Any
20 fees collected pursuant to this subparagraph shall be
21 deposited with the appropriate supervising authority.
22 Any willful violation of an order of the court for the
23 payment of the monitoring fee shall be a violation of
24 the sentence and may be punished as deemed proper by

1 the sentencing court. As used in this ~~paragraph~~
2 subparagraph, "electronic monitoring" means
3 confinement of the defendant within a specified
4 location or locations with supervision by means of an
5 electronic device approved by the Department of
6 Corrections which is designed to detect if the
7 defendant is in the court-ordered location at the
8 required times and which records violations for
9 investigation by a qualified supervisory agency or
10 person,

11 p. to perform one or more courses of treatment, education
12 or rehabilitation for any conditions, behaviors,
13 deficiencies or disorders which may contribute to
14 criminal conduct including but not limited to alcohol
15 and substance abuse, mental health, emotional health,
16 physical health, propensity for violence, antisocial
17 behavior, personality or attitudes, deviant sexual
18 behavior, child development, parenting assistance, job
19 skills, vocational-technical skills, domestic
20 relations, literacy, education or any other
21 identifiable deficiency which may be treated
22 appropriately in the community and for which a
23 certified provider or a program recognized by the
24 court as having significant positive impact exists in

1 the community. Any treatment, education or
2 rehabilitation provider required to be certified
3 pursuant to law or rule shall be certified by the
4 appropriate state agency or a national organization,
5 q. to submit to periodic testing for alcohol,
6 intoxicating substance or controlled dangerous
7 substances by a qualified laboratory,
8 r. to pay a fee or costs for treatment, education,
9 supervision, participation in a program or any
10 combination thereof as determined by the court, based
11 upon the defendant's ability to pay the fees or costs,
12 s. to be supervised by a Department of Corrections
13 employee, a private supervision provider or other
14 person designated by the court,
15 t. to obtain positive behavior modeling by a trained
16 mentor,
17 u. to serve a term of confinement in a restrictive
18 housing facility available in the community,
19 v. to serve a term of confinement in the county jail at
20 night or during weekends pursuant to Section 991a-2 of
21 this title or for work release,
22 w. to obtain employment or participate in employment-
23 related activities,
24

- x. to participate in mandatory day reporting to facilities or persons for services, payments, duties or person-to-person contacts as specified by the court,
- y. to pay day fines not to exceed fifty percent (50%) of the net wages earned. For purposes of this ~~paragraph~~ subparagraph, "day fine" means the offender is ordered to pay an amount calculated as a percentage of net daily wages earned. The day fine shall be paid to the local community sentencing system as reparation to the community. Day fines shall be used to support the local system,
- z. to submit to blood or saliva testing as required by subsection I of this section,
- aa. to repair or restore property damaged by the defendant's conduct, if the court determines the defendant possesses sufficient skill to repair or restore the property and the victim consents to the repairing or restoring of the property,
- bb. to restore damaged property in kind or payment of out-of-pocket expenses to the victim, if the court is able to determine the actual out-of-pocket expenses suffered by the victim,

1 cc. to attend a victim-offender reconciliation program if
2 the victim agrees to participate and the offender is
3 deemed appropriate for participation,
4 dd. to prioritize payments for restitution to the victim,
5 ee. in the case of a person convicted of prostitution
6 pursuant to Section 1029 of Title 21 of the Oklahoma
7 Statutes, require such person to receive counseling
8 for the behavior which may have caused such person to
9 engage in prostitution activities. Such person may be
10 required to receive counseling in areas including but
11 not limited to alcohol and substance abuse, sexual
12 behavior problems or domestic abuse or child abuse
13 problems,
14 ff. in the case of a sex offender sentenced after November
15 1, 1989, and required by law to register pursuant to
16 the Sex ~~Offender~~ Offenders Registration Act, the court
17 shall require the person to comply with sex offender
18 specific rules and conditions of supervision
19 established by the Department of Corrections and
20 require the person to participate in a treatment
21 program designed for the treatment of sex offenders
22 during the period of time while the offender is
23 subject to supervision by the Department of
24 Corrections. The treatment program shall include

1 polygraph examinations specifically designed for use
2 with sex offenders for purposes of supervision and
3 treatment compliance, and shall be administered not
4 less than each six (6) months during the period of
5 supervision. The examination shall be administered by
6 a certified licensed polygraph examiner. The
7 treatment program must be approved by the Department
8 of Corrections or the Department of Mental Health and
9 Substance Abuse Services. Such treatment shall be at
10 the expense of the defendant based on the defendant's
11 ability to pay,

12 gg. in addition to other sentencing powers of the court,
13 the court in the case of a defendant being sentenced
14 for a felony conviction for a violation of Section 2-
15 402 of Title 63 of the Oklahoma Statutes which
16 involves marijuana may require the person to
17 participate in a drug court program, if available. If
18 a drug court program is not available, the defendant
19 may be required to participate in a community
20 sanctions program, if available,

21 hh. in the case of a person convicted of any false or
22 bogus check violation, as defined in Section 1541.4 of
23 Title 21 of the Oklahoma Statutes, impose a fee of
24 Twenty-five Dollars (\$25.00) to the victim for each

1 check, and impose a bogus check fee to be paid to the
2 district attorney. The bogus check fee paid to the
3 district attorney shall be equal to the amount
4 assessed as court costs plus Twenty-five Dollars
5 (\$25.00) for each check upon filing of the case in
6 district court. This money shall be deposited in the
7 Bogus Check Restitution Program Fund as established in
8 subsection B of Section 114 of this title.

9 Additionally, the court may require the offender to
10 pay restitution and bogus check fees on any other
11 bogus check or checks that have been submitted to the
12 Bogus Check Restitution Program, and

13 ii. any other provision specifically ordered by the court.

14 However, any such order for restitution, community service,
15 payment to a local certified crime stoppers program, payment to the
16 Oklahoma Reward System or confinement in the county jail, or a
17 combination thereof, shall be made in conjunction with probation and
18 shall be made a condition of the suspended sentence.

19 However, unless under the supervision of the district attorney,
20 the offender shall be required to pay Forty Dollars (\$40.00) per
21 month to the district attorney during the first two (2) years of
22 probation to compensate the district attorney for the costs incurred
23 during the prosecution of the offender and for the additional work
24 of verifying the compliance of the offender with the rules and

1 conditions of his or her probation. The district attorney may waive
2 any part of this requirement in the best interests of justice. The
3 court shall not waive, suspend, defer or dismiss the costs of
4 prosecution in its entirety. However, if the court determines that
5 a reduction in the fine, costs and costs of prosecution is
6 warranted, the court shall equally apply the same percentage
7 reduction to the fine, costs and costs of prosecution owed by the
8 offender;

9 2. Impose a fine prescribed by law for the offense, with or
10 without probation or commitment and with or without restitution or
11 service as provided for in this section, Section 991a-4.1 of this
12 title or Section 227 of Title 57 of the Oklahoma Statutes;

13 3. Commit such person for confinement provided for by law with
14 or without restitution as provided for in this section;

15 4. Order the defendant to reimburse the Oklahoma State Bureau
16 of Investigation for costs incurred by that agency during its
17 investigation of the crime for which the defendant pleaded guilty,
18 nolo contendere or was convicted including compensation for
19 laboratory, technical or investigation services performed by the
20 Bureau if, in the opinion of the court, the defendant is able to pay
21 without imposing manifest hardship on the defendant, and if the
22 costs incurred by the Bureau during the investigation of the
23 defendant's case may be determined with reasonable certainty;

1 5. Order the defendant to reimburse the Oklahoma State Bureau
2 of Investigation for all costs incurred by that agency for cleaning
3 up an illegal drug laboratory site for which the defendant pleaded
4 guilty, nolo contendere or was convicted. The court clerk shall
5 collect the amount and may retain five percent (5%) of such monies
6 to be deposited in the Court Clerk's Revolving Fund to cover
7 administrative costs and shall remit the remainder to the Oklahoma
8 State Bureau of Investigation to be deposited in the OSBI Revolving
9 Fund established by Section 150.19a of Title 74 of the Oklahoma
10 Statutes;

11 6. In the case of nonviolent felony offenses, sentence such
12 person to the Community Service Sentencing Program;

13 7. In addition to the other sentencing powers of the court, in
14 the case of a person convicted of operating or being in control of a
15 motor vehicle while the person was under the influence of alcohol,
16 other intoxicating substance or a combination of alcohol or another
17 intoxicating substance, or convicted of operating a motor vehicle
18 while the ability of the person to operate such vehicle was impaired
19 due to the consumption of alcohol, require such person:

- 20 a. to participate in an alcohol and drug assessment and
21 evaluation by an assessment agency or assessment
22 personnel certified by the Department of Mental Health
23 and Substance Abuse Services pursuant to Section 3-460
24 of Title 43A of the Oklahoma Statutes and, as

1 determined by the assessment, participate in an
2 alcohol and drug substance abuse course or treatment
3 program or both, pursuant to Sections 3-452 and 3-453
4 of Title 43A of the Oklahoma Statutes,

5 b. to attend a victims impact panel program, as defined
6 in subsection H of this section, and to pay a fee of
7 Seventy-five Dollars (\$75.00) as set by the governing
8 authority of the program and approved by the court, to
9 the program to offset the cost of participation by the
10 defendant, if in the opinion of the court the
11 defendant has the ability to pay such fee,

12 c. to both participate in the alcohol and drug substance
13 abuse course or treatment program, pursuant to
14 subparagraph a of this paragraph and attend a victims
15 impact panel program, pursuant to subparagraph b of
16 this paragraph,

17 d. to install, at the expense of the person, an ignition
18 interlock device approved by the Board of Tests for
19 Alcohol and Drug Influence, upon every motor vehicle
20 operated by such person and to require that a notation
21 of this restriction be affixed to the person's driver
22 license at the time of reinstatement of the license.
23 The restriction shall remain on the driver license for
24 such period as the court shall determine. The

1 restriction may be modified or removed by order of the
2 court and notice of the order shall be given to
3 Service Oklahoma. Upon the expiration of the period
4 for the restriction, Service Oklahoma shall remove the
5 restriction without further court order. Failure to
6 comply with the order to install an ignition interlock
7 device or operating any vehicle without such device
8 during the period of restriction shall be a violation
9 of the sentence and may be punished as deemed proper
10 by the sentencing court, or

11 e. beginning January 1, 1993, to submit to electronically
12 monitored home detention administered and supervised
13 by the Department of Corrections, and to pay to the
14 Department a monitoring fee, not to exceed Seventy-
15 five Dollars (\$75.00) a month, to the Department of
16 Corrections, if in the opinion of the court the
17 defendant has the ability to pay such fee. Any fees
18 collected pursuant to this subparagraph shall be
19 deposited in the Department of Corrections Revolving
20 Fund. Any order by the court for the payment of the
21 monitoring fee, if willfully disobeyed, may be
22 enforced as an indirect contempt of court;

23 8. In addition to the other sentencing powers of the court, in
24 the case of a person convicted of prostitution pursuant to Section

1 1029 of Title 21 of the Oklahoma Statutes, require such person to
2 receive counseling for the behavior which may have caused such
3 person to engage in prostitution activities. Such person may be
4 required to receive counseling in areas including but not limited to
5 alcohol and substance abuse, sexual behavior problems or domestic
6 abuse or child abuse problems;

7 9. In addition to the other sentencing powers of the court, in
8 the case of a person convicted of any crime related to domestic
9 abuse, as defined in Section 60.1 of this title, the court may
10 require the defendant to undergo the treatment or participate in the
11 counseling services necessary to bring about the cessation of
12 domestic abuse against the victim. The defendant may be required to
13 pay all or part of the cost of the treatment or counseling services;

14 10. In addition to the other sentencing powers of the court,
15 the court, in the case of a sex offender sentenced after November 1,
16 1989, and required by law to register pursuant to the Sex Offenders
17 Registration Act, shall require the defendant to participate in a
18 treatment program designed specifically for the treatment of sex
19 offenders, if available. The treatment program will include
20 polygraph examinations specifically designed for use with sex
21 offenders for the purpose of supervision and treatment compliance,
22 provided the examination is administered by a certified licensed
23 polygraph examiner. The treatment program must be approved by the
24 Department of Corrections or the Department of Mental Health and

1 Substance Abuse Services. Such treatment shall be at the expense of
2 the defendant based on the ability of the defendant to pay;

3 11. In addition to the other sentencing powers of the court,
4 the court, in the case of a person convicted of abuse or neglect of
5 a child, as defined in Section 1-1-105 of Title 10A of the Oklahoma
6 Statutes, may require the person to undergo treatment or to
7 participate in counseling services. The defendant may be required
8 to pay all or part of the cost of the treatment or counseling
9 services;

10 12. In addition to the other sentencing powers of the court,
11 the court, in the case of a person convicted of cruelty to animals
12 pursuant to Section 1685 of Title 21 of the Oklahoma Statutes, may
13 require the person to pay restitution to animal facilities for
14 medical care and any boarding costs of victimized animals;

15 13. In addition to the other sentencing powers of the court, a
16 sex offender who is habitual or aggravated as defined by Section 584
17 of Title 57 of the Oklahoma Statutes and who is required to register
18 as a sex offender pursuant to the Sex Offenders Registration Act
19 shall be supervised by the Department of Corrections for the
20 duration of the registration period and shall be assigned to a
21 global position monitoring device by the Department of Corrections
22 for the duration of the registration period. The cost of such
23 monitoring device shall be reimbursed by the offender;

1 14. In addition to the other sentencing powers of the court, in
2 the case of a sex offender who is required by law to register
3 pursuant to the Sex Offenders Registration Act, the court may
4 prohibit the person from accessing or using any Internet social
5 networking website that has the potential or likelihood of allowing
6 the sex offender to have contact with any child who is under the age
7 of eighteen (18) years;

8 15. In addition to the other sentencing powers of the court, in
9 the case of a sex offender who is required by law to register
10 pursuant to the Sex Offenders Registration Act, the court shall
11 require the person to register any electronic mail address
12 information, instant message, chat or other Internet communication
13 name or identity information that the person uses or intends to use
14 while accessing the Internet or used for other purposes of social
15 networking or other similar Internet communication; or

16 16. In addition to the other sentencing powers of the court,
17 and pursuant to the terms and conditions of a written plea
18 agreement, the court may prohibit the defendant from entering,
19 visiting or residing within the judicial district in which the
20 defendant was convicted until after completion of his or her
21 sentence; provided, however, the court shall ensure that the
22 defendant has access to those services or programs for which the
23 defendant is required to participate as a condition of probation.
24 When seeking to enter the prohibited judicial district for personal

1 business not related to his or her criminal case, the defendant
2 shall be required to obtain approval by the court.

3 B. Notwithstanding any other provision of law, any person who
4 is found guilty of a violation of any provision of Section 761 or
5 11-902 of Title 47 of the Oklahoma Statutes or any person pleading
6 guilty or nolo contendere for a violation of any provision of such
7 sections shall be ordered to participate in, prior to sentencing, an
8 alcohol and drug assessment and evaluation by an assessment agency
9 or assessment personnel certified by the Department of Mental Health
10 and Substance Abuse Services for the purpose of evaluating the
11 receptivity to treatment and prognosis of the person. The court
12 shall order the person to reimburse the agency or assessor for the
13 evaluation. The fee shall be the amount provided in subsection C of
14 Section 3-460 of Title 43A of the Oklahoma Statutes. The evaluation
15 shall be conducted at a certified assessment agency, the office of a
16 certified assessor or at another location as ordered by the court.
17 The agency or assessor shall, within seventy-two (72) hours from the
18 time the person is assessed, submit a written report to the court
19 for the purpose of assisting the court in its final sentencing
20 determination. No person, agency or facility operating an alcohol
21 and drug substance abuse evaluation program certified by the
22 Department of Mental Health and Substance Abuse Services shall
23 solicit or refer any person evaluated pursuant to this subsection
24 for any treatment program or alcohol and drug substance abuse

1 service in which such person, agency or facility has a vested
2 interest; however, this provision shall not be construed to prohibit
3 the court from ordering participation in or any person from
4 voluntarily utilizing a treatment program or alcohol and drug
5 substance abuse service offered by such person, agency or facility.
6 If a person is sentenced to the custody of the Department of
7 Corrections and the court has received a written evaluation report
8 pursuant to this subsection, the report shall be furnished to the
9 Department of Corrections with the judgment and sentence. Any
10 evaluation report submitted to the court pursuant to this subsection
11 shall be handled in a manner which will keep such report
12 confidential from the general public's review. Nothing contained in
13 this subsection shall be construed to prohibit the court from
14 ordering judgment and sentence in the event the defendant fails or
15 refuses to comply with an order of the court to obtain the
16 evaluation required by this subsection.

17 C. When sentencing a person convicted of a crime, the court
18 shall first consider a program of restitution for the victim, as
19 well as imposition of a fine or incarceration of the offender. The
20 provisions of paragraph 1 of subsection A of this section shall not
21 apply to defendants being sentenced upon their third or subsequent
22 to their third conviction of a felony. Provided, the court may
23 waive these prohibitions upon written application of the district
24

1 attorney. Both the application and the waiver shall be made part of
2 the record of the case.

3 D. When sentencing a person convicted of a crime, the judge
4 shall consider any victim impact statements if submitted to the
5 jury, or the judge in the event a jury is waived.

6 E. Probation, for purposes of subsection A of this section, is
7 a procedure by which a defendant found guilty of a crime, whether
8 upon a verdict or plea of guilty or upon a plea of nolo contendere,
9 is released by the court subject to conditions imposed by the court
10 and subject to supervision by the Department of Corrections, a
11 private supervision provider or other person designated by the
12 court. Such supervision shall be initiated upon an order of
13 probation from the court, and shall not exceed two (2) years, unless
14 a petition alleging a violation of any condition of deferred
15 judgment or seeking revocation of the suspended sentence is filed
16 during the supervision, or as otherwise provided by law. In the
17 case of a person convicted of a sex offense, supervision shall begin
18 immediately upon release from incarceration or if parole is granted
19 and shall not be limited to two (2) years. Provided further, any
20 supervision provided for in this section may be extended for a
21 period not to exceed the expiration of the maximum term or terms of
22 the sentence upon a determination by the court or the ~~Division of~~
23 ~~Probation and Parole of the~~ Department of Corrections Probation and
24

1 Parole Services that the best interests of the public and the
2 release will be served by an extended period of supervision.

3 F. The Department of Corrections, or such other agency as the
4 court may designate, shall be responsible for the monitoring and
5 administration of the restitution and service programs provided for
6 by subparagraphs a, c and d of paragraph 1 of subsection A of this
7 section, and shall ensure that restitution payments are forwarded to
8 the victim and that service assignments are properly performed.

9 G. 1. The Department of Corrections is hereby authorized,
10 subject to funds available through appropriation by the Legislature,
11 to contract with counties for the administration of county Community
12 Service Sentencing Programs.

13 2. Any offender eligible to participate in the Program pursuant
14 to this section shall be eligible to participate in a county
15 Program; provided, participation in county-funded Programs shall not
16 be limited to offenders who would otherwise be sentenced to
17 confinement with the Department of Corrections.

18 3. The Department shall establish criteria and specifications
19 for contracts with counties for such Programs. A county may apply
20 to the Department for a contract for a county-funded Program for a
21 specific period of time. The Department shall be responsible for
22 ensuring that any contracting county complies in full with
23 specifications and requirements of the contract. The contract shall
24

1 set appropriate compensation to the county for services to the
2 Department.

3 4. The Department is hereby authorized to provide technical
4 assistance to any county in establishing a Program, regardless of
5 whether the county enters into a contract pursuant to this
6 subsection. Technical assistance shall include appropriate
7 staffing, development of community resources, sponsorship,
8 supervision and any other requirements.

9 5. The Department shall annually make ~~a~~ an electronic report to
10 the Governor, the President Pro Tempore of the Senate and the
11 Speaker of the House of Representatives on the number of such
12 Programs, the number of participating offenders, the success rates
13 of each Program according to criteria established by the Department
14 and the costs of each Program.

15 H. As used in this section:

16 1. "Ignition interlock device" means a device that, without
17 tampering or intervention by another person, would prevent the
18 defendant from operating a motor vehicle if the defendant has a
19 blood or breath alcohol concentration of two-hundredths (0.02) or
20 greater;

21 2. "Electronically monitored home detention" means
22 incarceration of the defendant within a specified location or
23 locations with monitoring by means of a device approved by the
24

1 Department of Corrections that detects if the person leaves the
2 confines of any specified location; and

3 3. "Victims impact panel program" means a program conducted by
4 a corporation registered with the Secretary of State in Oklahoma for
5 the sole purpose of operating a victims impact panel program. The
6 program shall include live presentations from presenters who will
7 share personal stories with participants about how alcohol, drug
8 abuse, the operation of a motor vehicle while using an electronic
9 communication device or the illegal conduct of others has personally
10 impacted the lives of the presenters. A victims impact panel
11 program shall be attended by persons who have committed the offense
12 of driving, operating or being in actual physical control of a motor
13 vehicle while under the influence of alcohol or other intoxicating
14 substance, operating a motor vehicle while the ability of the person
15 to operate such vehicle was impaired due to the consumption of
16 alcohol or any other substance or operating a motor vehicle while
17 using an electronic device or by persons who have been convicted of
18 furnishing alcoholic beverage to persons under twenty-one (21) years
19 of age, as provided in Sections 6-101 and 6-120 of Title 37A of the
20 Oklahoma Statutes. Persons attending a victims impact panel program
21 shall be required to pay a fee of Seventy-five Dollars (\$75.00) to
22 the provider of the program. A certificate of completion shall be
23 issued to the person upon satisfying the attendance and fee
24 requirements of the victims impact panel program. The certificate

1 of completion shall contain the business identification number of
2 the program provider. A certified assessment agency, certified
3 assessor or provider of an alcohol and drug substance abuse course
4 shall be prohibited from providing a victims impact panel program
5 and shall further be prohibited from having any proprietary or
6 pecuniary interest in a victims impact panel program. The provider
7 of the victims impact panel program shall carry general liability
8 insurance and maintain an accurate accounting of all business
9 transactions and funds received in relation to the victims impact
10 panel program. Beginning October 1, 2020, and each October 1
11 thereafter, the provider of the victims impact panel program shall
12 provide to the District Attorneys Council the following:

- 13 a. proof of registration with the Oklahoma Secretary of
14 State,
- 15 b. proof of general liability insurance,
- 16 c. end-of-year financial statements prepared by a
17 certified public accountant,
- 18 d. a copy of federal income tax returns filed with the
19 Internal Revenue Service,
- 20 e. a registration fee of One Thousand Dollars
21 (\$1,000.00). The registration fee shall be deposited
22 in the District Attorneys Council Revolving Fund
23 created in Section 215.28 of Title 19 of the Oklahoma
24 Statutes, and

1 f. a statement certifying that the provider of the
2 victims impact panel program has complied with all of
3 the requirements set forth in this paragraph.

4 I. A person convicted of a felony offense or receiving any form
5 of probation for an offense in which registration is required
6 pursuant to the Sex Offenders Registration Act, shall submit to
7 deoxyribonucleic acid (DNA) testing for law enforcement
8 identification purposes in accordance with Section 150.27 of Title
9 74 of the Oklahoma Statutes and the rules promulgated by the
10 Oklahoma State Bureau of Investigation for the OSBI Combined DNA
11 Index System (CODIS) Database. Subject to the availability of
12 funds, any person convicted of a misdemeanor offense of assault and
13 battery, domestic abuse, stalking, possession of a controlled
14 substance prohibited under the Uniform Controlled Dangerous
15 Substances Act, outraging public decency, resisting arrest, escape
16 or attempting to escape, eluding a police officer, Peeping Tom,
17 pointing a firearm, threatening an act of violence, breaking and
18 entering a dwelling place, destruction of property, negligent
19 homicide or causing a personal injury accident while driving under
20 the influence of any intoxicating substance, or any alien unlawfully
21 present under federal immigration law, upon arrest, shall submit to
22 DNA testing for law enforcement identification purposes in
23 accordance with Section 150.27 of Title 74 of the Oklahoma Statutes
24 and the rules promulgated by the Oklahoma State Bureau of

1 Investigation for the OSBI Combined DNA Index System (CODIS)
2 Database. Any defendant sentenced to probation shall be required to
3 submit to testing within thirty (30) days of sentencing either to
4 the Department of Corrections or to the county sheriff or other
5 peace officer as directed by the court. Defendants who are
6 sentenced to a term of incarceration shall submit to testing in
7 accordance with Section 530.1 of Title 57 of the Oklahoma Statutes,
8 for those defendants who enter the custody of the Department of
9 Corrections or to the county sheriff, for those defendants sentenced
10 to incarceration in a county jail. Convicted individuals who have
11 previously submitted to DNA testing under this section and for whom
12 a valid sample is on file in the OSBI Combined DNA Index System
13 (CODIS) Database at the time of sentencing shall not be required to
14 submit to additional testing. Except as required by the Sex
15 Offenders Registration Act, a deferred judgment does not require
16 submission to DNA testing.

17 Any person who is incarcerated in the custody of the Department
18 of Corrections after July 1, 1996, and who has not been released
19 before January 1, 2006, shall provide a blood or saliva sample prior
20 to release. Every person subject to DNA testing after January 1,
21 2006, whose sentence does not include a term of confinement with the
22 Department of Corrections shall submit a blood or saliva sample.
23 Every person subject to DNA testing who is sentenced to unsupervised
24 probation or otherwise not supervised by the Department of

1 Corrections shall submit for blood or saliva testing to the sheriff
2 of the sentencing county.

3 J. Samples of blood or saliva for DNA testing required by
4 subsection I of this section shall be taken by employees or
5 contractors of the Department of Corrections, peace officers, or the
6 county sheriff or employees or contractors of the sheriff's office.
7 The individuals shall be properly trained to collect blood or saliva
8 samples. Persons collecting blood or saliva for DNA testing
9 pursuant to this section shall be immune from civil liabilities
10 arising from this activity. All collectors of DNA samples shall
11 ensure the collection of samples are mailed to the Oklahoma State
12 Bureau of Investigation within ten (10) days of the time the subject
13 appears for testing or within ten (10) days of the date the subject
14 comes into physical custody to serve a term of incarceration. All
15 collectors of DNA samples shall use sample kits provided by the OSBI
16 and procedures promulgated by the OSBI. Persons subject to DNA
17 testing who are not received at the Lexington Assessment and
18 Reception Center shall be required to pay a fee of Fifteen Dollars
19 (\$15.00) to the agency collecting the sample for submission to the
20 OSBI Combined DNA Index System (CODIS) Database. Any fees collected
21 pursuant to this subsection shall be deposited in the revolving
22 account or the service fee account of the collection agency or
23 department.

24

1 K. When sentencing a person who has been convicted of a crime
2 that would subject that person to the provisions of the Sex
3 Offenders Registration Act, neither the court nor the district
4 attorney shall be allowed to waive or exempt such person from the
5 registration requirements of the Sex Offenders Registration Act.

6 SECTION 5. This act shall become effective November 1, 2026.
7

8 60-2-3792 TEK 3/12/2026 9:39:52 AM
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24